

men : it was resolved *per totam Curiam*, that in case of necessity, for the saving of the lives of the passengers, it was lawful to the defendant, being a passenger, to cast the casket of the plaintiff out of the barge, with the other things in it ; for *quod quis de tutelam corporis sui fecerit, jure id fecisse videtur*, to which the defendant pleads all this special matter ; and the plaintiff replies, *de injuria sua propria absque tali causa* : and the first day of this term, this issue was tried, and it was proved directly, that if the things had not been cast out of the barge, the passengers had been drowned ; and that *levandi causa* they were ejected, some by one passenger, and some by another ; and upon this the plaintiff was nonsuit.

It was also resolved, that although the ferryman surcharge the barge, yet for safety of the lives of passengers in such a time and accident of necessity, it is lawful for any passenger to cast the things out of the barge : and the owners shall have their remedy upon the surcharge against the ferryman, for the fault was in him upon the surcharge ; but if no surcharge was, but the danger accrued only by the act of God, as by tempest, no default being in the ferryman, everyone ought to bear his loss for the safeguard and life of a man : for *interest reipublice quod homines conserventur*, 8 Ed. 4. 23, &c. 12 H. 8. 15. 28 H. 8. Dyer, 36. plucking down of a house, in time of fire, &c. and this *pro bono publico ; et conservatio vite hominis est bonum publicum*. So if a tempest arise in the sea, *levandi navis causa*, and for salvation of the lives of men, it may be lawful for passengers to cast over the merchandizes, &c.

PROHIBITIONS DEL ROY.

Mich. 5 Jacobi 1.

The King in his own person cannot adjudge any case, either criminal or betwixt party and party ; but it ought to be determined and adjudged in some Court of Justice, according to the law and custom of England.

The King may sit in the King's Bench, but the Court gives the judgment. No King after the conquest assumed to himself to give any judgment in any cause whatsoever which concerned the administration of justice, within the realm ; but these causes were solely determined in the Courts of Justice.

The King cannot arrest any man.

4 Inst. 71. Com. Dig. Courts, A. See and note the introduction to Gibson's Codex, p. 20, 21.

Note, upon Sunday the 10th of November in this same term, the King, upon complaint made to him by Bancroft, Archbishop of Canterbury, concerning prohibitions, the King was informed, that when the question was made of what matters the Ecclesiastical Judges have cognizance, either upon the exposition of the statutes concerning tithes, or any other thing ecclesiastical, or upon the statute 1 El. concerning the high commission or in any other case in which there is not express authority in law, the King himself may decide it in his Royal person ; and that the Judges are but the delegates of the King, and that the King may take what causes he shall please to determine, from the determination of the Judges, and may determine them himself. And the Archbishop said, that this was clear in divinity, that such authority belongs to the King by the word of God in the Scripture. To which it was answered by me, in the presence, and with the clear consent of all the Judges of England, and Barons of the Exchequer, that the King in his own [64] person cannot adjudge any case, either criminal, as treason, felony, &c. or betwixt party and party, concerning his inheritance, chattels, or goods, &c. but this ought to be determined and adjudged in some Court of Justice, according to the law and custom of England : and always judgments are given, *ideo consideratum est per Curiam*, so that the Court gives the judgment ; and the King hath his Court, viz. in the Upper House of Parliament, in which he with his Lords is the supreme Judge over all other Judges ; for if error be in the Common Pleas, that may be reversed in the King's Bench ; and if the Court of King's Bench err, that may be reversed in the Upper House of Parliament.